

26NWCV00699 26NWCV00699

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-10

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Case Number: 26NWCV00699 Hearing Date: August 10, 2026 Dept: C

R. A., A

MINOR BY AND THROUGH HIS GUARDIAN AD LITEM, et al. vs CHRIST IN YOUTH, INC.

CASE NO.: 26NWCV00699

HEARING: 8/10/26 @ 9:30 AM

#9

TENTATIVE RULING

I.

Defendant Christ in Youth, Inc.'s Demurrer is OVERRULED. Defendant to answer within 10 days.

II.

Trial is set for February 2, 2028 at 10:00 a.m. in Dept.

SE-C. A Final Status Conference is set

for January 19, 2028 at 10:00 a.m. in Dept. SE-C.

III.

The Case Management Conference set for September 9, 2026 is
ADVANCED and VACATED.

Plaintiff

to give NOTICE.

Defendant

Christ in Youth, Inc. (Christ in Youth) demurs to Plaintiff R.A., a minor by

and through his guardian ad litem, Tracy Allen, et al.'s (Plaintiff) First Amended Complaint (FAC) for failure to state a cause of action and uncertainty.

Background

In the operative First

Amended Complaint filed on April 7, 2026, Plaintiff alleges he was a 13 years old when he participated in the Christ in Youth's camp from July 7, 2025 through July 11, 2025. (FAC, PLD-PI-001(2), p. 4.) As a result of Defendant Christ in Youth and Jeff Walling's breach of duty, Plaintiff's roommate allowed another camper to enter the dormitory room at night without adult supervision or authorization. While inside the room, Plaintiff was sexually assaulted, humiliated, and recorded without his consent despite repeatedly objecting and instructing the perpetrators to stop. At no point during Plaintiff's attempts to stop the harassment were staff members present or monitoring the dormitory to intervene, prevent, or stop the assault. (FAC, PLD-PI-001(2), p. 4.)

Plaintiff alleges causes of action for:

1. General Negligence
2. Negligent Supervision

Plaintiff dismissed

Defendant Jeff Walling without prejudice on June 22, 2026.

Meet and Confer

"Before filing a demurrer

pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (CCP § 430.41(a).) The Court finds the parties adequately met and conferred. (Lorch Decl., ¶¶ 4-7.)

Legal Standard

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

“Liberality

in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

Discussion

NEGLIGENCE: The elements are: (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC. (2014) 228 Cal.App.4th 664, 671.)

NEGLIGENT HIRING, TRAINING, OR

SUPERVISION requires that the employer knew or should have known its employee was unfit, and that such unfitness caused harm. (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054). The tort presupposes an employer/employee relationship. (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139).

Generally, one who has not created a peril has no duty to affirmatively act so as to prevent harm to third persons. Absent an applicable statute, the law does not require one to act as a “Good Samaritan.” (Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213; Regents of Univ. of Calif. v. Sup.Ct. (Rosen) (2018) 4 Cal.5th 607, 663-664, 669.) However, the law does impose a legal duty to affirmatively act (to protect someone else from danger or to control the conduct of a third person) if there is a “special relationship” between defendant and the person in danger or the third person creating the danger. (Brown v. USA Taekwondo, supra, 11 Cal.5th at 215.)

Christ in Youth argues that Plaintiff alleges in conclusory terms that Defendant owed Plaintiff a duty of care without any other explanation. Plaintiff fails to plead any factual support for why such a duty existed. Moreover, Plaintiff fails to identify who was in charge of supervising Plaintiff, who hired such individuals, or that Christ in Youth was allegedly in charge of supervising such hired individuals.

In opposition, Plaintiff argues that FAC sufficiently alleges that Defendant was responsible for “the organization, operation, supervision, management, training, and control of a youth summer camp,” and Plaintiff was a 13-year-old minor who attended the Christ in Youth camp when he suffered a sexual assault. (FAC p. 4) These facts support the existence of a legal duty based on the special relationship between Defendant, the operator of a summer camp, and Plaintiff, a minor in Defendant’s custody. (Doe v. Superior Court (2015) 237 Cal.App.4th 239, 246 [“Camp acted as a daycare provider, creating a special relationship which imposed a duty to exercise reasonable care to prevent harm to minor while attending the summer camp”]; Doe v. United States Youth Soccer Assn., Inc. (2017) 8 Cal.App.5th 1118, 1130 [same].)

The Court finds that Plaintiff has stated sufficient facts to state a cause of action for negligence and negligent hiring, training, or supervision. A summer camp that acts as a day-care provider has a special relationship with attendee children and their parents that requires the camp to exercise reasonable care to prevent harm to the children. (Doe v. Sup.Ct., supra, 237 Cal.App.4th 239, 247.)

Here, Plaintiff alleges that

Christ in Youth had a special relationship with Plaintiff because it was responsible for "the organization, operation, supervision, management, training, and control of a youth summer camp," and Plaintiff was a 13-year-old minor who attended the Christ In Youth camp when he suffered a sexual assault. (FAC, p. 4). Plaintiff further alleges Christ In Youth's agents and employees "breached their duties of care in multiple respects, including but not limited to failing to adequately supervise minor campers, failing to properly train and supervise staff, failing to enforce curfew and dormitory access rules, failing to monitor dorm rooms during nighttime hours, failing to prevent unauthorized entry into Plaintiff's dormitory room after curfew, and failing to implement, follow, and enforce reasonable policies and procedures designed to protect minor campers from abuse." (FAC, p. 4.)

Defendant's failure to ensure adequate oversight and enforcement of safety protocols was a substantial factor in allowing the assault to occur. (FAC, p. 4.) As to damages, Plaintiff alleges that "Plaintiff has suffered depression, embarrassment, humiliation, and reputational harm due to the circulation of the video recorded during the assault." (FAC, p. 4.) These allegations are sufficient to state causes of action for negligence and negligent supervision at the pleading stage. The identity of those in charge of supervising Plaintiff and who hired such individuals can be ascertained during discovery and need not be plead at this time.

Accordingly, the demurrer is OVERRULED. Defendant to answer within 10 days.